

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

September 21, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.	Bullene v. City of Laguna Beach 2026-01570286	Defendant Victoria Hawlish's Demurrer to the Complaint and Motion to Strike are CONTINUED December 7, 2026, at 2:00 p.m. in this Department to be heard at the same time as another demurrer and motion to strike directed at the same complaint. Prior to filing the Demurer and Motion to Strike, Moving Defendant failed to engage in a good faith meet and confer. (Code Civ. Proc. § 430.41(a).) The parties are ordered to meet and confer in person, by telephone or by video conference no later than 15 days after this order. Moving Defendant's counsel is to initiate the conference and Plaintiff is to cooperate with the scheduling of that call. No later than October 30, 2026, Defendant Hawlish shall file a declaration concerning the court-ordered meet and confer addressing whether any issues have been resolved and/or what issues remain. Further, Defendant Hawlish is admonished to comply with California Rules of Court and the Code of Civil Procedure concerning service of process on a self-represented party. The case management conference is continued to December 7, 2026 at 2:00 p.m. in this Department. Defendant Hawlish shall give notice of this ruling.
51.	Plascencia v. Ridgeway Park East Homeowners Association, Inc. 2026-01542868	Defendant Ridgeway Park East Homeowners Association, Inc.'s ("HOA") Demurrer to the First Amended Complaint ("FAC") is SUSTAINED. Defendant HOA's Request for Judicial Notice is GRANTED. Defendant HOA demurs to the First Amended Complaint on the grounds (1) Plaintiffs failed to file an ADR certificate and (2) Plaintiffs failed to state facts sufficient to state a cause of action against the HOA. Defendant HOA is correct as it relates to the Third and Fourth causes of action ("COA")—an ADR certificate is required. The negligent repair and maintenance claim (3rd COA) seeks damages in "excess of the jurisdiction of this court." (FAC ¶ 42.) The unlimited jurisdictional limit by definition exceeds the small claims limit. Therefore, an ADR certificate is required. (See Civ. Code § 5930).

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		Similarly, in the 4th COA, Plaintiff seeks an order from this court requiring the HOA to provide Plaintiffs with the opportunity to inspect the records of the HOA. The FAC pleads a claim for injunctive relief, requiring an ADR certificate. (See Civ. Code § 5930). The demurrer is SUSTAINED as to the 3rd and 4th COAs. The court disagrees with Defendant HOA's analysis that Civ. Code § 5930 requires an ADR certificate for the 1st and 2nd COAs. It does not apply to an assessment dispute. (Civ. Code § 5930, subd. (d).) Section 5930 states without qualification or reference to Section 5658 that the prelitigation ADR requirement does not apply to an assessment dispute. Moreover, Section 5658 states that the owner "may" pursue dispute resolution, but does not require it even for small claims actions. However, Defendant HOA is correct that the Plaintiffs' claims for wrongful assessment and negligence do not exist as standalone claims. Assessment disputes are governed by the Davis-Stirling Act or brought as breach of contract or breach of governing documents. (Civ. Code § 5658.) Plaintiffs cannot circumvent the statutory scheme by asserting causes of action that seek tort damages without any legal basis. In opposition, Plaintiffs do not dispute this argument. Accordingly, the demurrer to the first and second causes of action is SUSTAINED for failure to state a cause of action. Plaintiffs have 30 days leave to amend. The case management conference is continued to March 15, 2027 at 9:00 a.m. in Department C28. Defendant HOA shall give notice of this ruling.
52.	Slater v. Walt Disney Parks and Resorts, US, Inc. 2025-01500476	Defendant Luke Stedman's demurrer to Terri Jo Slater's fourth cause of action for intentional infliction of emotional distress ("IIED") and 5th cause of action for negligent infliction of emotional distress ("NIED") is SUSTAINED with ten days leave to amend. Analysis The Fair Employment and Housing Act (FEHA), codified at Cal. Gov't Code § 12900 et seq., prohibits age discrimination in employment. However, the legislature did not intend to place individual supervisory employees at risk of personal liability

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		for personnel management decisions later considered to be discriminatory. <i>Janken v. GM Hughes Electronics</i> (1996) 46 Cal.App.4th 55. In <i>Janken</i>, the court held that FEHA places individual supervisory employees at risk of personal liability for personal conduct constituting harassment, but not for personnel management decisions. The court further held that simple pleading of personnel management activity is insufficient to support a claim for IIED. This means that a supervisor who makes age-based decisions about hiring, firing, promotions, or other terms of employment cannot be held personally liable for IIED merely because those decisions are alleged to be discriminatory. 4th cause of action for IIED Age-based insults alone, such as a supervisor's insulting remarks regarding an employee's purported age and senility, do not rise to the level of outrageous conduct necessary to sustain an IIED claim. <i>Yurick v. Superior Court</i> (1989) 209 Cal.App.3d 1116. A plaintiff may pursue an IIED claim in the employment context where the conduct at issue violates FEHA and also satisfies the elements of the IIED claim. <i>Cornell v. Berkeley Tennis Club</i> (2017)) 18 Cal.App.5th 908. The conduct must be extreme and outrageous — beyond the bounds of human decency — and must not merely restate a discrimination or retaliation claim under a different label. <i>Light v. Department of Parks & Recreation</i> (2017) 14 Cal.App.5th 75. There are no specific allegations in the complaint that show outrageous conduct. There is a conclusory allegation in paragraph 43 that states: "As a proximate result of defendants' extreme and outrageous conduct, plaintiff has suffered and continues to suffer humiliation, emotional distress, and mental and physical pain and anguish, all to her damage in a sum according to proof." But plaintiff incorporates the allegations in paragraphs 14 to 16 which essentially allege Stedman made derogatory comments about her age, questioned plaintiff when she was going to retire, regularly excluded her from interactions with other employees, gave her the "cold shoulder," tried to "ice" her out of day-to-day interactions, and ultimately replaced her with younger employees after her termination. However, according to the authority cited above, the allegations are insufficient to support the IIED claim. Based on the above, the demurrer to the 4th cause of action is SUSTAINED with leave to amend.

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		5th cause of action for NIED Stedman contend this cause of action fails because it is not an independent tort and pleads no duty owed by Stedman. In opposition, Slater argues the tort of negligent infliction of emotional distress is premised on mental harm resulting from a defendant's failure to exercise due care toward the plaintiff. She further contends employers and supervisors owe a duty to their employees to "take all reasonable steps necessary to prevent discrimination and harassment from occurring", which plaintiff alleged was in full force and effect. Gov. Code, § 12940 (k); Comp. ¶ 29. Slater alleged that Stedman worked for the Disney defendants, was Slater's supervisor, and personally directed his conduct at plaintiff. Comp. ¶¶ 2, 6, 15. Slater also alleged that Defendants "were aware, or should have been aware, that discriminating against [P]laintiff would cause emotional distress." Comp. ¶ 46, 48. As Slater's supervisor, she alleges that Stedman directed age-based discrimination and hostile treatment at Plaintiff in conflict of his duty to exercise due care not to cause foreseeable emotional harm, and that Plaintiff has alleged that he breached that duty and proximately caused her severe emotional distress. Comp. ¶¶ 46-50. In <i>Smith v. International Brotherhood of Electrical Workers</i> (2003) 109 Cal.App.4th 1637, the court held that a union business manager who was not liable on the former employee's discrimination claims could not be held personally liable on the employee's claims of intentional and negligent infliction of emotional distress, which arose from the discrimination claims. This principle comes from the rule established in <i>Janken</i> that supervisors are not personally liable for discriminatory personnel management decisions. <i>Janken</i>, supra. Since the allegations here—age-related comments, exclusion, cold shoulder treatment, and replacement with younger employees—constitute discriminatory personnel management activity insufficient to support an IIED claim, they likewise cannot support an NIED claim against Stedman. Moreover, NIED claims in the employment context face additional hurdles. Such claims are generally barred by workers' compensation exclusivity unless the conduct violates fundamental public policy and exceeds the normal risks of the employment relationship. <i>Livitsanos v. Superior Court</i> (1992) 2 Cal.4th 744. Even where NIED claims based on FEHA violations might theoretically survive workers' compensation exclusivity, the

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		conduct must still satisfy the elements of negligent infliction of emotional distress, which typically requires either physical injury or conduct that is particularly likely to cause severe emotional distress. <i>Jones v. Department of Corrections & Rehabilitation</i> (2007) 152 Cal.App.4th 1367. The allegations described—discriminatory comments and exclusionary workplace behavior—do not meet this threshold and remain within the category of personnel management disputes that cannot support personal liability against a supervisor for emotional distress, whether characterized as intentional or negligent. Based on the above, the demurrer to the 5th cause of action is SUSTAINED with leave to amend. The amended complaint (if any) shall be filed within 10 days of this order. The case management conference is continued to March 15, 2027 at 9:00 a.m. in this department. Moving defendant shall give notice of this ruling.
53.		
54.	Applegate v. Everts 2025-01507318	Defendant Brockton Everts' Motion to Set Aside/Vacate the Default is GRANTED. Defendant seeks relief from default pursuant to CCP § 473(b). Section 473(b) provides, in pertinent part: The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. ... No affidavit or declaration of merits shall be required of the moving party. The law favors a trial on the merits, and doubts in applying Code of Civil Procedure section 473 are resolved in favor of the party seeking relief from default. (<i>Iott v. Franklin</i> (1988) 206 Cal. App. 3d 521, 526.) If a party moves promptly for default relief, or if the granting of the relief from default will

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		not prejudice the opposing party (other than losing the advantage of the default), only slight evidence will justify an order granting such relief. (<i>Id</i>; <i>Fasuyi v. Permatex, Inc.</i> (2008) 167 Cal.App.4th 681, 695.) Here, the default was entered against Defendant on November 12, 2025. (ROA 13). Defendant filed this motion with the court on April 20, 2026, within the six-month limit defined in Section 473. (ROA Nos. 21, 23, 25.) In the declaration, Defendant explains the circumstances that led to the default. Plaintiff in opposition does not present any evidence of prejudice. Given the liberal policy of favoring a determination on the merits, the court finds that Defendant has met the standard for relief from default under section 473(b). Accordingly, the motion is GRANTED. Defendant is to file and serve the proposed Answer within 10 days. The order to show cause is discharged. A case management conference is scheduled for March 15, 2027 at 9:00 a.m. in this department. Defendant shall give notice of this ruling.
55.		
56.	Horste v. SC Investments LLC 2023-01302494	The motion by plaintiff Angelle Horste to lift the arbitration stay, withdraw claims from arbitration, and impose monetary sanctions, pursuant to Code Civ. Proc., § 1281.98, is DENIED. This matter was ordered to arbitration pursuant to a post-dispute arbitration agreement (ROA 76), to which Code Civ. Proc., § 1281.98 does not apply. (<i>Trujillo v. J-M Manufacturing Co., Inc.</i> (2024) 107 Cal.App.5th 56, 70 ["We conclude the Legislature intended to limit section 1281.98's applicability to arbitration arising from a predispute agreement"]; disapproved on separate grounds by <i>Hohenshelt v. Superior Court</i> (2025) 18 Cal.5th 310, 349; see also Cal. Rules of Court, Rule 8.1115, subd. (e)(2) ["After decision on review by the Supreme Court, unless otherwise ordered by the Supreme Court ... a published opinion of a Court of Appeal in the matter ... is citable and has binding or precedential effect, except to the extent it is inconsistent with the decision of the Supreme Court or is disapproved by that court"].)

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		As a separate and independent ground, the motion is also denied, based on defendant SC Investments LLC's showing that the failure to pay arbitration fees resulted from inadvertence and/or excusable neglect. (<i>Hohenshelt v. Superior Court</i>, <i>supra</i> at 333-335; Rios Decl., ¶¶ 3-5.) This denial is without prejudice to a subsequent motion in the event the arbitration cannot be resumed and/or completed. (See <i>Brock v. Kaiser Foundation Hospitals</i> (1992) 10 Cal.App.4th 1790, 1796 [upon conclusion of the arbitration proceedings, if there is no award on the merits, "the action at law may resume to determine the rights of the parties"]; see also <i>id.</i> at 1808 [failure to cooperate in arbitration "does not mean that a party to an arbitration proceeding has no remedy against dilatory tactics," but "may move in the arbitration proceedings to terminate them for failure to pursue the arbitration claim with reasonable diligence"]; <i>Cinel v. Christopher</i> (2012) 203 Cal.App.4th 759, 769 ["because the arbitration had been terminated and the trial court did not confirm, correct or vacate Christopher's petition, but instead dismissed the petition, the stay terminated and the trial court properly set the matter for trial"].) The order to show cause is DISCHARGED. The court sets a status conference regarding the arbitration for January 15, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ORDERED to submit a joint statement concerning the arbitration. Defendant SC Investments LLC shall give notice of this ruling.
57.	Matthew R. Silver and Civica Law Group APC v. Curtis R. Wright 2025-01478015	The motion by Petitioner / Judgment Creditor Matthew R. Silver for a charging order against Respondent / Judgment Debtor Curtis R. Wright's partnership interests in Serviam by Wright LLP and Serviam Law, LLP, is GRANTED. (Code Civ. Proc., §§ 708.310, 708.320; Corp. Code, § 16504.) The court issues a charging order against Judgment Debtor's transferable partnership interests in (1) Serviam by Wright LLP and (2) Serviam Law, LLP, in the unsatisfied amount of the Judgment, which as of July 1, 2026 is \$1,573,363.37, representing the principal balance of the Judgment, plus accrued interest and costs. The court finds that Judgment Debtor has waived the direct service requirements of Code Civ. Proc., § 684.020, by opposing this matter on the merits, and failing to show prejudice from service on counsel. (<i>Carlton v. Quint</i> (2000) 77 Cal.App.4th 690, 697-698 [service defects found waived

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		despite objection, where opposing party “did file an opposition to the motion, appeared and argued at the hearing, never requested a continuance of the hearing and never claimed prejudice by reason of insufficient notice or service”]; see also <i>Robinson v. Woods</i> (2008) 168 Cal.App.4th 1258, 1267–1268 [opposing on notice grounds only, without addressing merits, preserves notice objection].) Judgment Debtor fails to substantiate his claimed exemptions, as is his burden. (Code Civ. Proc., §§ 703.580, subd. (b) [at a hearing on a claim of exemption, “the exemption claimant has the burden of proof”], 703.080, subd. (b) [“The exemption claimant has the burden of tracing an exempt fund”]; <i>Le Font v. Rankin</i> (1959) 167 Cal. App. 2d 433, 435 [“one who contends for an exemption must establish his right by evidence, by facts ... an affidavit which merely follows the language of the statute states nothing more than a conclusion of law and proves nothing”].) Judgment Debtor’s reliance on Code Civ. Proc., § 706.050 is misplaced, as it limits amounts that can be collected under an “earnings withholding order,” not a charging order as sought here. Judgment Debtor has also not provided the required financial statement for a claim of exemption under Code Civ. Proc., § 706.051 [amounts “necessary for the support of the judgment debtor or the judgment debtor's family supported in whole or in part by the judgment debtor”]. (Code Civ. Proc., § 703.530, subd. (a) [“If property is claimed as exempt pursuant to a provision exempting property to the extent necessary for the support of the judgment debtor and the spouse and dependents of the judgment debtor, the claim of exemption shall include a financial statement], subd. (b) [financial statement requirements]; see also Judicial Council form WG-007/EJ-165 [form financial statement].) Judgment Debtor’s supporting declaration does not include the information required by Code Civ. Proc., § 703.530, subd. (b). Judgment Debtor offers no other grounds to deny the requested relief. Accordingly, a charging order issues as set forth above. Moving party shall give notice.
58.	Perfect 85 Degrees C, Inc. v. Virtuous	Plaintiff Perfect 85 Degrees C, Inc.’s Motion for Order Permitting Service of the Summons and Complaint on Defendant Virtuous Personnel, Inc. by Delivery to the

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	Personnel, Inc. 2026-01562151	California Secretary of State is GRANTED. (Corp. Code §1702., subd. (a).) Plaintiff Perfect 85 Degrees C, Inc.'s Motion for Order Permitting Service of the Summons and Complaint on Defendant Legacy & Co. by Delivery to the California Secretary of State is GRANTED. (Corp. Code §1702, subd. (a).) Corporations Code section 1702 permits the court to authorize delivery of process to the Secretary of State when the plaintiff has shown that process could not be served with reasonable diligence on the corporation's designated agent, or on the corporation by any other authorized method. (Corps. Code § 1702, subd. (a).) <u>Plaintiff has Shown that Defendant Virtuous Personnel, Inc.'s Designated Agent for Service of Process Cannot, with Reasonable Diligence, be Found at the Designated Address and the Corporation Cannot, with Reasonable Diligence be Served by any Other Authorized Method</u> The Court finds Plaintiff has established reasonable diligence in attempting to serve process on Defendant Virtuous Personnel, Inc.'s designated agent for service of process, Wendy Laguna, at the address designated: 1155 S. Milliken Ave, Ste J, Ontario, Ca 91761. However, the process server was informed by the current occupant that Defendant Virtuous was no longer the tenant at that address. (ROA 13 [Blank Decl. at ¶ 5]; see also <i>Id.</i> at Ex. B [Declaration of Due Diligence].) Despite several more efforts to locate a potential address where defendant's agent could be served, Plaintiff was not able to effect service at any of these locations. (Blank Decl. at ¶¶ 6-7.) Absent a physical address, the Court finds Plaintiff is not able to effect service of process by any of the available methods on Defendant Virtuous Personnel, Inc. Accordingly, the Court orders service to be made upon Defendant Virtuous Personnel, Inc. by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for defendant, together with a copy of the order authorizing such service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State. (Corps. Code, § 1702, subd. (a); Code Civ. Proc., § 416.10, subd. (d).) <u>Plaintiff has Shown that Defendant Legacy & Co.'s Designated Agent for Service of Process Cannot, with</u>

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		<u>Reasonable Diligence, be Found at the Designated Address and the Corporation Cannot, with Reasonable Diligence be Served by any Other Authorized Method</u> The Court finds Plaintiff has established reasonable diligence in attempting to serve process on Defendant Legacy & Co.'s designated agent for service of process, Jose R. Rojas Jr., at the address designated: 3200 E. Guasti Rd., Ste 100, Ontario, CA 91760. However, the process server was unable to complete service at this address because it was a shared office space and the receptionist was not authorized to accept service on any tenant's behalf. The process server was unable to serve Defendant Legacy & Co. at this address despite several attempts on different days at different times. (ROA 17 [Blank Decl. at ¶ 5]; see also <i>Id.</i> at Ex. B [Declaration of Due Diligence].) Plaintiff was unable to locate an address for Defendant Legacy & Co., or any of its officers, other than the address identified above. Absent a physical address, the Court finds Plaintiff is not able to effect service of process by any of the available methods on Defendant Legacy & Co. Accordingly, the Court orders service to be made upon Defendant Legacy & Co. by delivering by hand to the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for defendant, together with a copy of the order authorizing such service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State. (Corps. Code, § 1702, subd. (a); Code Civ. Proc., § 416.10, subd. (d).) The case management conference is continued to March 15, 2027 at 9:00 a.m. in Department C28. Plaintiff shall provide notice.
59.	The People of the State of California v. Experian Data Corp. 2019-014047183	Defendant Experian Data Corp.'s unopposed Motion to Seal is GRANTED. (Cal. Rules of Court, Rule 2.551, subd. (b).) The Court finds that Moving Party has made a sufficient factual showing under Cal. Rules of Court, Rule 2.550, subd. (d) to justify sealing: (1) Moving Party has shown that the records it seeks to seal consist of, or directly reference, communications between Defendant and various States' Attorneys General regarding the negotiation and terms of a tolling agreement and confidential

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		documents reflecting Defendant's data sharing methods and policies. (2) Moving Party has shown an overriding interest that supports sealing of records (see <i>NBC Subsidiary (KNBC-TV), Inc. v. Superior Court</i> (1999) 20 Cal.4th 1178, 1222, fn. 46 [recognizing inter alia an overriding interest in protection of trade secrets and protection of information within the attorney-client privilege]; <i>Universal City Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1286 [recognizing that confidential and sensitive business and financial information is ordinarily a matter appropriate for sealing].) Furthermore, the Court finds a compelling reason to maintain the privacy of these matters because the subject matter involves information that could be utilized by malicious actors to augment identify theft techniques. (3) Publication of these records would prejudice Moving Party and the public in general by publicly disclosing sensitive information regarding the handling of consumer data and the strategies undertaken by various law enforcement bodies to combat identity theft. (4) Moving Party proposed a narrowly tailored means to protect the overriding interest by limiting the sealing only to those matters that are directly related to the overriding interest. (5) Moving Party has shown there is no less restrictive means of protecting the overriding interests identified above. The clerk is directed to file the unredacted versions of: the Declaration of Ryan Ball in Support of Defendant Experian Data Corp.'s Reply In Support of Motion for Summary Judgment (ROA 1923) and the Reply Memorandum (1922) UNDER SEAL. The redacted versions of the Declaration (ROA 1908) and Memorandum (ROA 1902) shall be accessible on the public record of this proceeding. Moving party shall provide notice of this ruling.
60.	Perez v. Jaguar Land Rover North America, LLC	Plaintiffs Shontel Perez and Roy Perez' Motion for Attorney fees is GRANTED in part. Defendants Jaguar Land Rover North America, LLC and LAD Mission Viejo-JLR dba Jaguar Land Rover Mission Viejo shall pay <u>\$58,532.50</u> in reasonable attorney fees and <u>\$4,584.41</u> in costs and expenses to Plaintiff. (See Code Civ. Proc.,

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2024-01374602		§1033.5, subd. (a)(10)(B) [statutory attorney fees]; Civ. Code §1794, subd. (d) [Song-Beverly attorney fees]; <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095-1096 [lodestar; trial court’s discretion]; <i>Reynolds v. Ford Motor Company</i> (2020) 47 Cal.App.5th 1105, 1112 [same]; Melton Decl. ¶¶ 10-13vv [description of services performed]; ¶¶20-21 [justification for hourly rates sought], ¶21 [timekeeping procedures]; and Ex. 20 [timekeeping records].) The attorney fee award consists of the reasonably expended hours of work at the reasonable hourly rates sought by the following timekeepers: <table><tr><th>Timekeeper</th><th>Role</th><th>Rate</th><th>Hours</th><th>Total</th></tr><tr><td>Dana I. Castruita, Esq.</td><td>Former Associate</td><td>\$400</td><td>1.5</td><td>\$600</td></tr><tr><td>Luis Aguirre, Esq.</td><td>Former Associate</td><td>\$475</td><td>0</td><td>\$0</td></tr><tr><td>Kimya Assadkhan</td><td>Former Associate</td><td>\$250</td><td>1.5</td><td>\$375</td></tr><tr><td>Matthew T. Goethals, Esq.</td><td>Attorney</td><td>\$500</td><td>0.6</td><td>\$300</td></tr><tr><td>Shawna M. Melton, Esq.</td><td>Partner</td><td>\$650</td><td>75</td><td>\$48,750</td></tr><tr><td>David Womack</td><td>Paralegal</td><td>\$200</td><td>13.4</td><td>\$2,680</td></tr><tr><td>Rebecca Goethals</td><td>Paralegal</td><td>\$225</td><td>25.9</td><td>\$5,827.50</td></tr><tr><td></td><td></td><td></td><td>92.9</td><td>\$58,532.50</td></tr></table> Plaintiffs have adequately established a basis for the reasonableness of the hourly fees requested for the attorney timekeepers by providing evidence of each timekeeper’s experience and qualifications and reference to rates charged by other lemon law attorneys in the Orange County market. Plaintiffs have sufficiently established that the requested hourly rates of counsel are reasonable and commensurate with what other similarly tenured and experienced attorneys could charge in the Orange County market, subject to the court’s further qualification discussed below. The court generally credits the accuracy of Moving Parties’s time records. (See <i>City of Colton v. Singletary</i> (2012) 206	Timekeeper	Role	Rate	Hours	Total	Dana I. Castruita, Esq.	Former Associate	\$400	1.5	\$600	Luis Aguirre, Esq.	Former Associate	\$475	0	\$0	Kimya Assadkhan	Former Associate	\$250	1.5	\$375	Matthew T. Goethals, Esq.	Attorney	\$500	0.6	\$300	Shawna M. Melton, Esq.	Partner	\$650	75	\$48,750	David Womack	Paralegal	\$200	13.4	\$2,680	Rebecca Goethals	Paralegal	\$225	25.9	\$5,827.50				92.9	\$58,532.50
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Dana I. Castruita, Esq.	Former Associate	\$400	1.5	\$600																																											
Luis Aguirre, Esq.	Former Associate	\$475	0	\$0																																											
Kimya Assadkhan	Former Associate	\$250	1.5	\$375																																											
Matthew T. Goethals, Esq.	Attorney	\$500	0.6	\$300																																											
Shawna M. Melton, Esq.	Partner	\$650	75	\$48,750																																											
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			92.9	\$58,532.50																																											

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		Cal.App.4th 751, 784-785.) Reasonable hourly compensation does not include inefficient or duplicative efforts, aka "padding." (<i>Graham v. DaimlerChrysler Corp.</i> (2004) 34 Cal. 4th 553, 579-580) The court finds that the records include duplicative/overstaffed billing relative to the work involved in bringing this case to a resolution. The fee award has been reduced to reflect a number of hours reasonably spent to complete the tasks involved in this lawsuit, where no pleadings challenges, or dispositive motion practice were required. (See <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816 [no abuse of discretion where trial court reduced fee award to account for duplicative and unnecessary billing].) The time Moving Parties claim to have spent drafting the Complaint, preparing routine written discovery requests and routine motions to compel discovery are excessive and not reasonably necessary to complete these tasks. Having reviewed the billing records in detail, it appears to the court that either (1) attorney Melton's hourly rate at \$650 per hour is excessive for the matters billed (ex: drafting discovery, correspondence, and motions) or (2) the hours spent are too high for someone performing at a partner's level and charging \$650 per hour. For example, in August 2024, attorney Melton spent over 17 hours on discovery matters. The court applies its own knowledge of these types of matters, and own experience in litigation to assess these requests. As a result, and to address attorney Melton's hours and rate, the court has reduced the hours requested and applied a \$650 rate for this timekeeper. The hours reasonably expended for purposes of the lodestar have been adjusted accordingly. The court declines to award a multiplier. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138 [trial court discretion to award multiplier].) This was a standard lemon law case. Counsel's skill and contingency risk are reflected in the reasonable hourly rates described above. Plaintiffs' memorandum of costs seeks recovery of reasonable and necessary costs and the full request of \$4,584.41 is GRANTED. The court orders this case dismissed without prejudice. Upon defendants' payment of outstanding monies owed, plaintiffs can move to dismiss with prejudice Plaintiffs shall give notice of this ruling.

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61.		
62.	National Funding, Inc. v. Great Caterers LLC 2025-01527909	Plaintiff National Funding, Inc.'s Motion for Summary Judgment is DENIED. (Code Civ. Proc. §437c, subd. (p)(1).) Plaintiff has failed to meet its initial burden to show it is entitled to summary judgment. Plaintiff's Request for Judicial Notice is GRANTED. (Evid. Code §452, subd. (d) [court records].) The Court takes judicial notice of the fact that the request for dismissal in the prior action was filed on 6/23/25. Defendants' evidentiary objection No. 12 is OVERRULED based on this ruling. Plaintiff's evidentiary objections are OVERRULED. Defendant's evidentiary objection Nos 2-5, 7-10, and 13 are SUSTAINED. Defendants' other evidentiary objections are OVERRULED. Code Civ. Proc. § 437c(p)(1) sets forth a plaintiff's burden when moving for summary judgment. It provides: "A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The defendant or cross-defendant may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto." "[W]hen a plaintiff moves for summary adjudication, the plaintiff meets his or her burden of showing that there is no defense to a cause of action if the plaintiff proves each element of the cause of action entitling the party to judgment on the cause of action. When plaintiffs bear the burden of proof by a preponderance of evidence at trial, they must present evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not—otherwise, they would not be entitled to judgment as a matter of law, but would have to present their evidence to a trier of fact. If the plaintiff meets their burden, the defendant must set forth specific facts showing a triable issue of material facts

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		exist.” (<i>Campbell v. FPI Management, Inc.</i> (2024) 98 Cal.App.5th 1151, 1162.) Plaintiff moves for summary judgment of its four causes of action for breach of contract. The elements for a cause of action for breach of contract are: “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (<i>Oasis West Realty LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Plaintiff fails to meet its initial burden to establish a breach of FRPSA Agreements Nos. 1 and 2. Since the initial burden for the element of breach of the FRSPA Agreements has not been met, Plaintiff cannot meet its initial burden to establish a breach of the guaranty agreements. With respect to the breach of FRSPA No. 1, Plaintiff asserts: “On or about August 18, 2023, Seller defaulted on FRSPA No. 1 by instructing its bank or other depository financial institution to stop payment on the authorized ACH withdrawal initiated by National Funding and has continuously remained in default.” (SSUMF No. 5.) Plaintiff cites to the Otero Declaration, ¶¶6-9 and the “Payment History” attached as an exhibit to Otero’s declaration. With respect to the breach of FRSPA No. 2, Plaintiff asserts “On or about August 17, 2023, Seller defaulted on FRPSA No. 2 by instructing its bank or other depository financial institution to stop payment on the authorized ACH withdrawal initiated by National Funding and has continuously remained in default.” (SSUMF No. 16.) Plaintiff cites to the Otero Declaration, ¶¶13-16 and the “Payment History” attached as an exhibit to Otero’s declaration. Paragraph 4.1 of both FRSPA 1 and 2 provide the same list of 21 “events of default.” Plaintiff’s Motion only invokes Paragraph 4.1, subd. (ii), which provides that the following would constitute a default on the Agreements: “Seller [Defendant] instructs its bank or other depository financial institution to stop payment on any authorized ACH withdrawal initiated by Purchaser.” Plaintiff fails to provide competent evidence in support of its motion to meet its initial burden that Defendants instructed their bank to stop payments to Plaintiff. The evidence shows that Plaintiff attempted to withdraw its payments under FRSPA No. 1 on 8/18/23 and FRSPA No. 2 on 8/17/23, but the payment history exhibits and Otero’s declaration provides no evidence that the payments failed due to Defendants

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		instructing "its bank or other depository financial institution to stop payment on any authorized ACH withdrawal initiated by" Plaintiff. The Court will not draw the inference that the failure of the withdrawal was the result of Defendants' instructions to the bank. The showing in support of the breach of guaranty causes of action is equally unavailing. Plaintiff asserts that: - "On or about September 1, 2022, Guarantor executed and delivered to National Funding a written personal guaranty, under which he guaranteed the indebtedness of the Seller due to National Funding under FRPSA No. 1." (SSUMF No. 4.) - "Guaranty No. 1 states in relevant part: 1.1 Scope: Guarantor hereby absolutely, irrevocably and unconditionally guarantees to the Purchaser the following ... (vi) Seller will not block Purchaser from, and will provide Purchaser with full access to, the Designated Account" (SSUMF No. 9.) - "On or about March 15, 2023, Guarantor executed and delivered to National Funding a written personal guaranty, under which he guaranteed the indebtedness of the Seller due to National Funding under FRPSA No. 2" (SSUMF No. 15.) - "Guaranty No. 2 states in relevant part: 1.1 Scope: Guarantor hereby absolutely, irrevocably and unconditionally guarantees to the Purchaser the following ... (vi) Seller will not block Purchaser from, and will provide Purchaser with full access to, the Designated Account" (SSUMF No. 20.) This showing is deficient. There is no evidence that Defendants blocked Plaintiff from accessing the account. There is no evidence that Defendants instructed the bank to stop payment. Thus, there is no basis for the acceleration of the indebtedness, leaving no basis for a claimed breach of guaranty. The motion fails on the initial burden as to all four causes of action. Accordingly, the motion is DENIED. Defendant shall provide notice of this ruling.
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